UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN FRANCISCO DIVISION

DANA KOWALSKI-OKAFOR,
Plaintiff,

v.

BRIGHTHARBOR SOFTWARE, INC.,
Defendant.

Case No. 3:26-cv-04412

COMPLAINT FOR RETALIATION AND FAILURE TO ACCOMMODATE; DEMAND FOR JURY TRIAL

Plaintiff Dana Kowalski-Okafor ("Plaintiff") alleges as follows against Defendant Brightharbor Software, Inc. ("Brightharbor").

INTRODUCTION

1. Plaintiff worked as a senior product analyst for Brightharbor. After she requested a reasonable accommodation for a documented disability and reported a manager's discriminatory remarks, Brightharbor terminated her employment. Plaintiff brings claims under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e-3(a), and the Americans with Disabilities Act, 42 U.S.C. § 12112(b)(5)(A).

JURISDICTION, VENUE AND EXHAUSTION

2. This Court has jurisdiction under 28 U.S.C. § 1331. Venue is proper in the Northern District of California, San Francisco Division, because Brightharbor employed Plaintiff in San Francisco.

3. Plaintiff filed a charge with the Equal Employment Opportunity Commission on May 4, 2026. The EEOC issued a Notice of Right to Sue on August 12, 2026.

PARTIES

4. Plaintiff is an individual who resides in Oakland, California. Her email address is dana.ko@examplemail.com.

5. Defendant Brightharbor Software, Inc. is a corporation headquartered in San Francisco, California.

FACTUAL ALLEGATIONS

6. Brightharbor hired Plaintiff on August 15, 2022. Plaintiff has a chronic autoimmune condition that substantially limits major life activities.

7. On January 12, 2026, Plaintiff asked her supervisor in writing for a modified schedule and remote work two days per week as a reasonable accommodation. Brightharbor never engaged in the interactive process and denied the request without explanation.

8. On February 2, 2026, Plaintiff reported to Human Resources that her manager made sex-based remarks to female team members. That report was protected activity.

9. On March 16, 2026, Brightharbor terminated Plaintiff's employment, citing restructuring. Two male colleagues with similar roles were retained.

COUNT I - Retaliation in Violation of Title VII

10. Plaintiff incorporates the preceding paragraphs. Brightharbor terminated Plaintiff because she opposed practices made unlawful by Title VII.

COUNT II - Failure to Accommodate in Violation of the Americans with Disabilities Act

11. Plaintiff is a qualified individual with a disability. Brightharbor failed to provide a reasonable accommodation and failed to engage in the interactive process.

PRAYER FOR RELIEF

Plaintiff requests back pay, reinstatement or front pay, compensatory and punitive damages, and attorneys' fees.

DEMAND FOR JURY TRIAL

Plaintiff demands a jury trial.

Dated: September 3, 2026